

my Inheritance and denied to receive my Personal property that was stolen.”

The Court is in receipt of Plaintiff’s responsive documents filed on October 28, 2025 and her Motion for Leave to file an Amended Complaint filed March 30, 2026, which includes a form complaint as well as a further responsive argument to Defendants’ Demurrer. However, the Court notes that its analysis on the Defendants’ Demurrer is limited to the operative First Amended Complaint, which in this case is bereft of detail regarding Plaintiff’s claims.

As a consequence, the Court sustains Defendants demurrer, and grants Plaintiff leave to amend.

6. 9:00 AM CASE NUMBER: C25-01904
CASE NAME: BANK OF AMERICA, N.A. VS. MICHAEL ORTIZ
***HEARING ON MOTION IN RE: AMEND JUDGMENT TO CORRECT MISNOMER**
FILED BY: BANK OF AMERICA, N.A.
TENTATIVE RULING:

Good cause shown and no opposition having been filed, the judgment entered on September 29, 2025 is hereby amended to replace “Defendant Steven Ortiz” to the correct name of “Defendant Michael Steven Ortiz.”

7. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: TO COMPLAINT FILED (CONTD FROM 3/4/26 PER TR)
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC’s demurrer to the first amended complaint is **sustained with leave to amend as to Infotechtion International Ltd’s claims against Infotechtion, LLC and otherwise overruled**. Plaintiff has 10 days from notice of entry of the order to file a second amended complaint.

Allegations

Plaintiffs Infotechtion Limited (“UK Company”) and Infotechtion International Ltd (“Holding Company”) sued Defendants Brian Tuemmler and Infotechtion, LLC (“US Company”). Plaintiffs are incorporated in the United Kingdom and Defendant LLC is incorporated in California. Tuemmler is a California resident.

Atle Skjekkeland, Vivek Bhatt, Oxana Travina, and Defendant Tuemmler were partners who owned various companies in Norway, the Netherlands, United Kingdom, United States and India and they worked under the name Infotechtion. (FAC ¶10.) The Partners entered into a new agreement, Founding Agreement 2.0, in February 2020. (FAC ¶11.) Pursuant to the Agreement 2.0, the partners agreed to ownership in a Holding Company with Tuemmler having 10.5% ownership interest. (FAC ¶11.) The partners would be the board of directors of the Holding Company. (FAC ¶12.)

Tuemmler organized the US Company in March 2020 with knowledge of the other partners. Tuemmler held 100% ownership in the US Company for the benefit of all the partners and with the understanding that 100% ownership in the US Company would be transferred to the Holding Company per the Agreement 2.0. (FAC ¶16.) The UK Company invested in the US Company by assigning it contracts and by engaging people who could bring business to the US Company. (FAC ¶17.) In 2021, the UK Company and US Company entered into an ongoing business relationship where the UK Company supplied consulting and professional services to the US Company. (FAC ¶19.) Tuemmler conceived, owned and controlled the US Company and all of its dealings with the UK Company. (FAC ¶19.)

The UK Company's and US Company's dealings were governed by clear terms: Scope, pricing, and timelines were set in e-mail and teleconference exchanges; the US Company issued purchase orders that the UK Company accepted; the UK Company submitted monthly time-and-materials logs and invoices that were neither disputed nor rejected; and the US Company made partial payments and received account statements reflecting the unpaid balances. (FAC ¶20.) These continued payments and years of undisputed performance created an implied-in-fact contract. (FAC ¶21.)

In April 2025, Tuemmler flew a US Company sales executive to Portugal to address the UK Company's annual sales conference. This executive represented robust bookings and strong cash flow for upcoming quarters for the US Company. Relying on these representations, the UK Company expanded its staffing and continued to provide resources and service to the US Company and refrained from collection efforts on unpaid balances believing that the US Company was solvent. (FAC ¶22.)

Within weeks of the April presentation, the UK Company learned that the US Company had terminated all its employees, suspended operations and lacked the funds to pay outstanding debts. (FAC ¶23.) On May 8, 2025, the UK Company sent a demand letter for the unpaid balance of \$297,495.18 plus interest. (FAC ¶24.) Defendants acknowledged that the US Company ceased operations on May 15, 2025, had only about \$15,000 in cash and an expected \$40,000 in receivables. (FAC ¶25.) Defendants also claimed the \$297,495.18 included un-invoiced work, unsold licenses and amounts owed to the US Company. (FAC ¶27.) The FAC alleges that Tuemmler is the alter ego of the US Company. (FAC ¶¶28-30.)

Plaintiffs are suing the Defendants as follows

	<i>Plaintiffs</i>	<i>Defendants</i>	<i>Cause of Action</i>
1	UK and Holding Company	Tuemmler	Breach of fiduciary duties
2	UK	US and Tuemmler	Breach of contract – implied-in-fact
3	UK	US and Tuemmler	Account stated

4	UK (unspecified, but allegations show UK)	US and Tuemmler	Quantum Meruit
5	UK and Holding Company	US and Tuemmler	Fraudulent Transfer – actual intent to defraud
6	UK and Holding Company	US and Tuemmler	Fraudulent Transfer – constructive fraud
7	UK and Holding Company	US and Tuemmler	Unlawful distribution of corporate assets – improper payments to shareholder/director
8	UK and Holding Company	Tuemmler	Intentional misrepresentation / fraud
9	UK and Holding Company	Tuemmler	Negligent misrepresentation

Analysis

Here, Defendants demurred to the FAC on the grounds that it “fails to state facts sufficient to constitute a cause of action, is uncertain and unintelligible, and that there is a defect or misjoinder of parties.” Although not clearly specified in their notice of motion, the demurrer is based upon Code of Civil Procedure section 430.10(d), (e), and (f).

As to the defect or misjoinder of parties, subsection (d), Defendants make no argument that the parties in this case are improper and does not clearly explain what the concern is regarding the parties. It appears that this theory may be based on the argument that Tuemmler owed the partners fiduciary duties, not the companies. But Defendants have not shown that the individual partners must be named in this case. To the extent Defendants are attempting to bring a motion under Code of Civil Procedure section 389, that motion was not properly included in the notice of motion and is denied without prejudice.

As to the uncertainty argument, the demurrer for uncertainty is to the entire complaint. The Court finds that the complaint is not so uncertain that Defendants cannot respond to it. And the uncertainty demurrer is overruled.

As to the failure to state sufficient facts to constitute a cause of action, subsection (e), Defendants did not specify whether the grounds for demurrer apply to specific causes of action and therefore, the demurrer is to the entire complaint. (See, Cal Rules of Court, rule 3.1320(a).) When demurring to the entire complaint based upon the failure to state facts sufficient to constitute a cause

of action any cause of action in the complaint results in the demurrer being overruled. (See *Warren v. Atchison, T. & S. F. Ry. Co.* (1971) 19 Cal.App.3d 24, 29; see also 5 Witkin Cal. Proc Plead § 953.) Here, there are two plaintiffs and two defendants and thus, the Court must determine if each plaintiff has stated at least one cause of action against each defendant.

Fiduciary Duty (C/A 1)

Defendants argue that this claim fails because the FAC shows that Tuemmler's fiduciary duties are to the Majority Partners and the Infotechtion Partnership and not the subsidiaries like the UK Company and the Holding Company. Defendant argues that the parties formed a partnership in 2020, and they individuals owe each other fiduciary duties under that partnership. Defendant points out that the Holding Company was not incorporated until 2023 and thus, he argues he cannot owe it any fiduciary duties under the partnership agreement.

A claim for breach of fiduciary duty requires: (1) a fiduciary relationship; (2) breach; and (3) resulting damage. (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432.) "A fiduciary relationship is 'any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party.'" (*Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 29.) "Traditional examples of fiduciary relationships in the commercial context include trustee/beneficiary, directors and majority shareholders of a corporation, business partners, joint adventurers, and agent/principal. [Citations.]" (*Id.* at 30.)

The FAC alleges that Tuemmler was a partner, board member, and Chief Product Officer, and that he organized and controlled the US Company for the benefit of the Holding Company. (FAC ¶¶ 11–16, 34.) Plaintiffs' allegation that Tuemmler was running the US Company for the benefit of the Holding Company is sufficient to show that fiduciary duties were owed by Tuemmler. Further, there are sufficient allegations to show breach, including: Tuemmler diverted corporate funds to pay off loans for which he alone was personally liable, took compensation for himself while the UK Company's invoices remained unpaid and failed to disclose the true nature of the US Company's financial situation. (FAC ¶36.)

Therefore, the Court finds that the Holding Company has sufficiently alleged a claim against Tuemmler and Tuemmler's demurrer to the complaint (as to the Holding Company) for failure to state a cause of action is overruled.

It is not clear whether Tuemmler owed a fiduciary duty to the UK Company. Since the UK Company has brought other claims against Tuemmler the Court will consider those before determining how to rule on the demurrer by Tuemmler as to the UK Company.

Implied-in-fact contract, account stated, and quantum meruit (C/A 2, 3, and 4)

Defendant argues that these claims fail because UK and US Companies are both assets of the partnership and they were irrevocably pledged to be transferred to the Holding Company under the Partnership Agreement. Defendant argues that the US Company cannot owe any money to the UK Company and any debts are illusory. This argument is not persuasive. The UK Company, US Company

and the Holding Company are all alleged to be separate entities. Defendants cites no law that holds two companies owned by the same parent company cannot entered into contracts.

Defendant argues that Plaintiff needs to allege actual damages and/or actual transfer of value as an element of breach of contract, quantum meruit, and account stated causes of action.

“An implied-in-fact contract is based on the conduct of the parties. (Civ. Code, § 1621.) Like an express contract, an implied-in-fact contract requires an ascertained agreement of the parties. [Citation.]” (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636.) “ ‘To be entitled to damages for breach of contract, a plaintiff must plead and prove (1) a contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff. [Citations.]’ ” (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1352.)

The Court agrees that Plaintiffs must allege actual damage. Defendants’ argument that Plaintiffs have not alleged actual damage here is not persuasive. Plaintiff alleges that UK and US companies are different legal entities and that the UK Company provided services to the US Company, which it accepted and paid for, at least for a time. (FAC ¶¶ 40-45.) These allegations are sufficient to show actual damage to the UK Company.

Defendants did not discuss the elements for quantum meruit, and account stated and thus, the Court will not consider whether Plaintiffs have sufficiently alleged those claims.

Defendant argues that these claims are barred by applicable fiduciary duties owed by the partnership and majority partners to Defendant. Defendant argues that Plaintiffs were not allowed to request payment from Defendant as the company’s financial position worsened. Defendant has not cited law to support this argument. Further, the Court is not convinced that the UK Company had fiduciary duties to the Defendants and, if there were such duties, those included not seeking payment for services provided. Finally, this issue appears to be one that could be raised in a later motion or perhaps at trial. (The Court takes no position on whether such issue is legally appropriate.)

Defendants also argue that the sham pleading doctrine applies here. “Under the sham pleading doctrine, ‘[i]f a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations.’ [Citation.] Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party’s cause of action is a sham and sustain a demurrer without leave to amend. [Citation.]” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447.)

Defendant argues that allegations in the FAC are inconsistent with the claims for unpaid debts because of the alleged relationship between the various Infotechtion entities, Defendants argue that any debts the US Company owed the UK Company are illusory. This is not a sham pleading doctrine issue as there is no showing that allegations in the FAC contradict those in the original complaint. Still, the Court has considered this argument and finds it unpersuasive.

The demurrer to these claims is overruled.

Fraudulent Transfer (C/A 5 and 6)

Defendant argues that there must be a viable underlying payment obligation for there to be a fraudulent transfer claim. (Civil Code 3439.01; 3439.04.) Defendant next argues that for the reasons stated above, there is no valid claim. This argument fails. As explained above, Plaintiff has alleged a claim for an implied-in-fact contract, with almost \$300,000 still unpaid. Those allegations are sufficient to show an underlying payment obligation. (Civil Code § 3439.01 [a claim means a right to payment and a creditor means a person that has a claim].)

Defendant argues that the Holding Company should not be included in this claim. The fraudulent transfer claims are based upon the underlying debt that the US Company allegedly owes the UK Company. Plaintiff has not explained how the Holding Company has a claim here.

The demurrer to these claims is overruled as to the UK Company's claims against the Defendants. The demurrer as to Holding Company's claims against Defendants is sustained with leave to amend. It is unclear how US owed a payment obligation to Holding Company and thus, unclear how Holding Company has a claim here.

Unlawful distribution of corporate assets (C/A 7)

Defendant argues that Plaintiff is suing under the wrong corporations code section, as the US Company is an LLC, not a corporation. In opposition, Plaintiffs cite to the Corporations Code section for LLCs, Corporations Code section 17704.05. The Court will not sustain the demurrer on this ground, since the UK Company has already stated a claim against the Defendants. However, Plaintiff is given leave to amend to correct the Corporations Code section cited in their complaint.

Defendant argues that this claim fails for the same reason as the fraudulent conveyance claim because there was no underlying debt. As explained above there was an underlying debt. This argument fails as to UK. As to Holding Company, however, it is sustained with leave to amend for the reasons explained above.

Misrepresentation Claims (C/A 8 and 9)

Defendant argues that the misrepresentation claims fail because you cannot sue for prospective statements about anticipated or hoped-for future events.

"The elements of fraud are (1) misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance on the misrepresentation, (4) justifiable reliance on the misrepresentation, and (5) resulting damages. [Citations.]" (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.) "[A]ctionable misrepresentations must pertain to past or existing material facts. [Citation.] Statements or predictions regarding future events are deemed to be mere opinions which are not actionable. [Citation.]" (*Id.* at 1469.)

In *Cansino*, homeowners sued their mortgage lending, alleging that they had represented that plaintiffs' property was appreciating and that plaintiffs could obtain several years of appreciation in their property so that they could sell or refinance before having to make higher monthly payments. (*Id.* at 1469.) The court noted that "the actionable nature of some statements may not readily be determined on demurrer. [Citation.] But plaintiffs provide no authority for their position that a prediction about future market conditions constitutes an actionable misrepresentation, and we have found none." (*Id.* at 1470.)

Here, Plaintiffs allege that at the sales conference, a representation acting at Tuemmler's direction, "presented projections of substantial new business and strong revenue for upcoming quarters". (FAC ¶168.) She "represented robust bookings and strong cash flow for upcoming quarters." (FAC ¶122.) The representative also made "statements regarding Infotechion US's financial condition, projected revenues, and ability to pay its obligations." (FAC ¶173.)

These allegations are sufficient to go beyond predictions regarding future events. Allegations of "robust bookings" is an allegation based on present facts. Further a "strong cash flow" may be somewhat based upon predictions of future events, but it is also based upon the current state of the company and what bookings and unpaid invoices looked like, which are based on current facts. Overall, the Court finds that the allegations are sufficient to show actionable misrepresentation.

Defendant also argues that the partnership had a right to inspect the US Company's books and therefore there can be no fraud claims. This argument is not supported by legal citations and is not persuasive in any event.

Defendant also cites law regarding what must be alleged to state a claim for fraud against a corporate entity, but only the individual defendant is sued in these claims.

Judicial Notice

The Court takes judicial notice that the Certificate of Incorporation of Infotechion International, Ltd., which shows a date of incorporation of November 27, 2023, because it is unopposed and appears to be a matter not reasonably disputed by the parties. (Evidence Code section 452(h).)

8. 9:00 AM CASE NUMBER: MSC18-02438
CASE NAME: 88/12 LLC VS GARAVENTA
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: 88/12 LIMITED PARTNERSHIP BY AND THROUGH ITS GENERAL PARTNER, 88/12 LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
TENTATIVE RULING:

This matter has been removed from calendar as judgment was previously entered.

9. 9:00 AM CASE NUMBER: MSC20-00628
CASE NAME: RISOFTEDEV VS CHATFIELD